

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant), upon learning that his data had been registered in a solvency file due to a debt, sent a letter to CREDIRECT PRÉSTAMOS, S.L. (hereinafter, the respondent) requesting “(...) all the necessary documentation informing me of the reasons for such a claim and how the amount, principal, applied interests, commissions, etc., was generated, in order to verify that they conform to the original signed contract, of which I also request a copy. (...)”, as well as the precautionary removal of his data from said files, stating that he has not received the legally established response. He attached, along with his complaint letter, a copy of the request and proof of its sending, dated May 24, 2023.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The respondent indicated that “(...) the Customer Service Department of Credirect sent the client a Formal Payment Request certified, which we provide as Document No. 2, under the warning of proceeding to include his personal data in the national file of defaulters ASNEF-EQUIFAX in case of continued non-payment. This request has not been attended to, neither for the payment of the outstanding amounts nor for any other purpose; the client has not contacted Credirect at any time to exercise any rights that assist him, and Credirect has not received any request from the client to exercise data protection rights.” “(...) Since he has been informed on several occasions about the payment and the claimant has not paid even the principal of the loans, Credirect cannot remove the user from such a file, to prevent the unjust enrichment operation from being repeated.”

THIRD: Regarding the letter sent in response to the information request made by this Agency, and given that there were certain aspects that needed clarification, a letter was sent to the respondent indicating that they should supplement the initially submitted documentation by providing “a copy of the response to the claimant in which the requested rights are addressed or denied with justification.” The respondent replied by providing a copy of an email sent on March 6, 2023, in which they state that “(...) we attach the contracts of your client and a payment agreement letter up to the principal amount lent; this amount must be paid within the next 24-48 hours for the cancellation of the file. (...)”

FOURTH: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on October 18, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing process, so that within ten working days they could present the allegations they deemed appropriate. The respondent indicated, in summary, that the claimant contracted two personal loans with the entity, and that, since they were not paid by the established date, they sent several emails informing him that his data could be included in solvency files, without any new contact from the claimant being recorded. The respondent continues to indicate that “(...) On May 26, 2023, the claimant sent my represented party the letter that he has provided and that initiated the file, stating his ignorance of the debt and again requesting documentation, which was provided both at the time of the contract signing and on March 7, 2023, through communication that my represented party sent to the claimant and which we have included in the file in our last letter of October 24, 2023. On June 26, 2023, my represented party, once again and in order to avoid judicial proceedings with the claimant, agreed to recognize again the nullity of the remunerative interests of contracts XXXXXX and XXXXXX, attaching the documentation related to them, -we emphasize, for the third time and in consideration of the rights of the claimant- We provide the response as Document No. 6.”

FIFTH: After examining the letter submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they may formulate the allegations they consider appropriate, without any allegations being made within the established period.

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3/8

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on October 18, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

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5/8

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the provisions of Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Right to restriction of processing

Article 18 of the GDPR, which regulates the right to restriction of processing of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the restriction of processing of personal data when one of the following conditions is met:

a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;

- b) the processing is unlawful and the data subject opposes the deletion of personal data and requests instead the restriction of its use;
- c) the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the formulation, exercise, or defense of claims;
- d) the data subject has objected to the processing under Article 21, paragraph 1, while verifying whether the legitimate grounds of the controller override those of the data subject."

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6/8

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for its storage, with the consent of the data subject or for the formulation, exercise, or defense of claims, or for the protection of the rights of another natural or legal person, or for important public interest reasons of the Union or of a specific Member State.

3. Any data subject who has obtained the restriction of processing in accordance with paragraph 1 shall be informed by the controller before the lifting of such restriction.

It should be noted that the right to restriction of processing enables the claimant to restrict the processing of data when the accuracy of the personal data is contested, for a period that allows the controller to verify its accuracy; when the processing is unlawful and the data subject opposes the deletion of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of claims; or when the data subject has opposed the processing, while it is verified whether the legitimate grounds of the controller override those of the claimant.

VI

Conclusion

Article 4 of the GDPR, Definitions, states that:

"For the purposes of this Regulation, the following definitions shall apply:

1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

(...)"

In the case analyzed, from the examination of the documentation provided, it has been established that the claimant exercised the rights of access and restriction.

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Regarding the right of access, "(...) how that amount was generated, principal, applied interest, fees, etc., (...)", the entity has not provided any documentary evidence that would allow considering that it has responded to the claimant by providing the requested data.

The right of access is the right of data subjects to know what data is being processed by the data controller, the data subject to processing, the purpose of this, the origin of the data, and whether it has been or will be communicated to third parties.

It cannot be accepted that the response that corresponds to be given can be manifested in the course of a mere administrative procedure, such as the formulation of

7/8

allegations regarding the present procedure, initiated precisely for failing to duly address the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been made, leaving it without the response that those responsible are obliged to issue, even in the event that there are no data in the files or even in those cases where it does not meet the required criteria, in which case the recipient of said request is likewise obliged to require the rectification of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in

question should not be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the exercise of rights is not attached, it is appropriate to uphold the complaint that originated the present procedure concerning the right of access, regulated in Article 15 of the GDPR.

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Regarding the right to restriction, the responding party has stated that there is an outstanding debt, which it has informed this Agency about during the processing of the present procedure, and there is no record that it has been contested before the competent authorities. The responding party has provided a copy of an email sent to the claimant on June 26, 2023, in which "(...) we attach the requested documentation regarding the contract made, and payment agreement for the principal loaned (...)"

The right to restrict processing enables the claimant to limit the processing of data when the accuracy of the personal data is contested, for a period that allows the responsible party to verify their accuracy; when the processing is unlawful and the individual opposes the deletion of the personal data; when the responsible party no longer needs the personal data for the purposes of processing, but they are necessary for the formulation of the exercise or defense of claims, or when the individual has opposed the processing, while verifying whether the legitimate grounds of the responsible party prevail over those of the claimant.

Regarding the veracity of the debt, as well as other financial matters arising from the contractual relationship, it should be noted that it exceeds the jurisdiction of the Spanish Data Protection Agency to resolve the conflict underlying between the parties, nor to enter into assessments regarding the civil or commercial validity of the contract, the proper provision of the contracted services, or the interpretation of contractual clauses. The determination of legitimacy based on an interpretation of a contract signed between the parties must be pursued before the competent administrative or judicial bodies.

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8/8

Consequently, it is appropriate to dismiss the complaint filed regarding the right to restriction regulated in Article 18 of the GDPR.

In view of the cited provisions and others of general application, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A., regarding the exercise of the right of access, considering that the provisions of Article 15 of the GDPR have been infringed and to urge CREDIRECT PRÉSTAMOS, S.L. with NIF B88569959, to send the claimant a certification addressing the requested right or to deny it with justification indicating the reasons why the request should not be attended to, in accordance with the provisions established in the body of this resolution, within ten working days following the notification of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO DISMISS the complaint filed by Mr. A.A.A. against CREDIRECT PRÉSTAMOS, S.L. regarding Article 18 of the GDPR.

THIRD: TO NOTIFY this resolution to Mr. A.A.A. and to CREDIRECT PRÉSTAMOS, S.L.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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